

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, August 12, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, August 12, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03779	The Village of Los Banos, Unit No. 2 Owners Association vs K. Hovnanian Communities, Inc., et al.
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Motion for Summary Adjudication

K. Hovnanian Defendants' motion for summary adjudication is GRANTED.

Defendants' requests for judicial notice are GRANTED.

Plaintiff's objections to evidence in opposition are OVERRULED.

Defendants filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiff's claims relating to the roads, perimeter walls, sewer and stormwater lift stations, clubhouse, and tennis court are time barred by the applicable 10-year statute of repose.

Specifically, Defendants' UMFs 7, 8, 10, 11, 13, 14, 15, 18 and 20, establish the roads, perimeter walls, sewer and stormwater lift stations, clubhouse, and tennis court were completed, and that Defendants' did not possess or control those areas, more than ten

(10) years prior to Plaintiff's lawsuit; see evidence cited in support of UMFs 7, 8, 10, 11, 13, 14, 15, 18, 20, and Reply Exhibit 9 regarding these facts.

This shifts the burden to Plaintiff to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2). Here, Plaintiff's stated authority and evidence in opposition does not raise a triable issue of material fact. Therefore, Defendants' motion for summary adjudication is granted.

The motion for summary adjudication as to Defendant JELD-WEN is DENIED WITHOUT PREJUDICE. Defendant JELD-WEN failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.

The motion for summary adjudication as to Defendant J.R. Pierce Plumbing is DENIED WITHOUT PREJUDICE. Defendant Pierce Plumbing failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.

Defendant K. Hovnanian is directed to submit a written order to the court consistent with this ruling and in compliance with California Rules of Court, rule 3.1312.

22CV-04217 Arcelia Ochoa vs Marcos Renteria AG Services, Inc., et al.

Status Review of Settlement

CONTINUED to October 6, 2026, at 8:15 a.m. in Courtroom 8, for Plaintiff to file a proper declaration and request for entry of judgment based on Defendant's alleged non-compliance with the settlement agreement.

The statement filed August 5, 2026, does not contain a declaration regarding non-compliance. Although Plaintiff asserts that an abstract of judgment was mailed to the court on July 27, 2026, no documents have been lodged as of August 10, 2026.

23CV-00355 Elizabeth De La Garza vs City of Merced, et al.

Motion for Summary Judgment

Defendant AJG's motion for summary judgment is GRANTED.

Defendant's request for judicial notice is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant AJG is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that negate the element of duty and establish the alleged condition was trivial.

Specifically, Defendant's UMFs 4, 5, 6, 7, 8, 9, and 10, establish the condition was open and obvious, there was no practical necessity of encountering the alleged danger, as well as that the alleged condition was trivial; see evidence cited in support of UMFs 4, 5, 6, 7, 8, 9, and 10 regarding these facts.

This shifts the burden to Plaintiff to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2). Plaintiff in opposition does not provide evidence that disputes the above or otherwise raise a triable issue of material fact. Accordingly, Plaintiffs have failed to meet their burden.

Defendant is directed to submit a written order to the court consistent with this ruling and in compliance with California Rules of Court, rule 3.1312.

25CV-01723 People vs \$11,284.33

Petition for Forfeiture

Appearance required.

25CV-02677 Luciano Lopez Morales vs Nathan Mininger, et al.

Status Conference re: Arbitration

Appearance required. Appear to address status of arbitration proceedings.

25CV-04818 Michael Flynn, et al. vs Grey B. Roberts, et al.

Order to Show Cause re: Dismissal – Notice of Settlement

Appearance required. Appear to address status of settlement and dismissal pursuant to the agreement announced at the last case management conference on April 20, 2026. As of August 10, 2026, no notice of settlement has been filed with the court.

Case Management Conference

Appearance required.

25CV-05991 Elisha Jasmin Mutrie-Macario, et al. vs General Motors LLC

Order to Show Cause re: Sanctions

Pursuant to the declaration of counsel, Mei Xuan, filed August 10, 2026, the Court finds GOOD CAUSE NOT TO ISSUE SANCTIONS for defense counsel's failure to appear at the case management conference on June 15, 2026. No appearance is required.

Case Management Conference

**CONTINUED on the Court's own motion to May 17, 2027, at 10:00 a.m. in Courtroom 8.
The clerk's office is ordered to give notice to all parties.**

26CV-03582 Petition of: Latisha Dorton

Order to Show Cause re: Name Change

Appearance required. Proof of publication was filed August 6, 2026. Appear to address service on the non-petitioning parent of the petition to change the name of a minor child.

26CV-04107 Claudia Saldana vs Otilia Ortuno Rojas

Order to Show Cause re: Restraining Order & Cross-Petition

Appearance required. There is no proof of service of the cross-petition on Petitioner/Cross-Respondent on file with the court. Proof of service of the original petition and notice of hearing on Respondent/Cross-Petitioner was filed August 5, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 12, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
25CV-01098	Gonzalo Villasenor vs. Loretta Ortiz Aguilar
	Status Conference – Status of Default and Default Judgment
	Appearance required. Appear to address the status of entry of default and request for default judgment.
25CV-015611	LVNV Funding, LLC vs. Kimberley Bentley
	Status Conference – Status of Default and Default Judgment
	Appearance required. Appear to address the status of entry of default and request for default judgment.

26CV-03016 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03384 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Trials
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 12, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
25CV-02127	Velocity Investments, LLC vs. Francisco Flores
Court Trial	
Appearance required.	
25CV-03426	Capital One, N.A. vs. Diana Ordiniza
Court Trial	
Appearance required.	
25CV-03486	JPMorgan Chase Bank, N.A. vs. Matthew Mays
Court Trial	

Court trial is vacated as moot. On August 3, 2026, Plaintiff filed a stipulation agreement by the parties that includes an agreement to dismiss the action with the court retaining

jurisdiction to enforce the settlement agreement under Code of Civil Procedure section 664.6.

25CV-03530

Crown Asset Management, LLC vs. Ken Johnson

Court Trial

Appearance required. The Court notes that after trial was scheduled and notice of trial was served by mail, Plaintiff filed a first amended complaint without leave of court.
